

Terms of Service

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Project: acme-saas

Review Notes

What a lawyer should check

- Review limitation of liability clauses for enforceability
- Confirm governing law and jurisdiction are correct
- Check that service description matches actual offering
- Verify termination provisions are fair and clear
- Ensure dispute resolution mechanism is appropriate

Auto-generated vs. needs human input

Section	Status	Confidence
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Service description	Template — needs customization	Low
Liability limitations	Standard template language	Medium
User obligations	Standard template language	Medium
Governing law	From config if provided	Medium

Related Documents

- Privacy Policy (`PRIVACY\_POLICY.md`)
- Acceptable Use Policy (`ACCEPTABLE\_USE\_POLICY.md`)
- Refund Policy (`REFUND\_POLICY.md`)
- Service Level Agreement (`SERVICE\_LEVEL\_AGREEMENT.md`)

1. Agreement to Terms

By accessing or using the services provided by Acme SaaS Inc. ("the Service"), you agree to be legally bound by these Terms of Service ("Terms"), which constitute a binding agreement between you and Acme SaaS Inc.. IF YOU DO NOT AGREE TO ALL OF THESE TERMS, YOU ARE NOT AUTHORIZED TO ACCESS OR USE THE

SERVICE. Your continued use of the Service following any modifications to these Terms constitutes acceptance of such modifications.

2. Description of Service

Acme SaaS Inc. is a software application that provides its users with various features and functionalities as described on our website and documentation.

3. User Accounts

If the Service requires account registration:

- You must provide accurate and complete information
- You are responsible for maintaining the security of your account
- You must notify us immediately of any unauthorized access
- You are responsible for all activities under your account
- You must be at least 16 years old (or the minimum age in your jurisdiction) to create an account

4. Acceptable Use

You agree not to:

- Use the Service for any unlawful purpose
- Attempt to gain unauthorized access to any part of the Service
- Interfere with or disrupt the Service or its infrastructure
- Upload malicious code, viruses, or harmful data
- Scrape, crawl, or harvest data from the Service without permission
- Impersonate another person or entity
- Use the Service to send spam or unsolicited communications

5. AI-Generated Content

The Service uses artificial intelligence to generate content and provide features.

- ****No guarantee of accuracy:**** AI-generated content may contain errors, inaccuracies, or biases. You are responsible for reviewing and verifying any AI output before relying on it.
- ****User inputs:**** Content you provide as input to AI features may be processed by third-party AI service providers.
- ****Ownership:**** You retain ownership of your inputs. AI-generated outputs are provided for your use, but we make no claim of exclusivity — similar outputs may be generated for other users.
- ****Prohibited uses:**** You may not use AI features to generate content that is illegal, harmful, misleading, or that violates the rights of others.
- ****EU AI Act compliance:**** We provide transparency about our AI systems as required by applicable regulations. See our AI Disclosure document for details.

6. Payments and Billing

- All fees are stated at the time of purchase
- Payments are processed through secure third-party payment providers
- You agree to pay all fees associated with your use of the Service
- Refund policies are as described on our pricing page
- We reserve the right to change pricing with reasonable notice
- All prices are exclusive of taxes unless stated otherwise

7. Privacy

Your use of the Service is also governed by our Privacy Policy. By using the Service, you acknowledge that you have read and understood our Privacy Policy, which describes how we collect, use, and share your personal information.

8. Intellectual Property

The Service, including its code, design, and documentation, is protected by intellectual property laws. You may not copy, modify, distribute, or reverse engineer any part of the Service without our permission.

9. Disclaimer of Warranties

THE SERVICE IS PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS, WITHOUT WARRANTIES OF ANY KIND, EITHER EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT. Acme SaaS Inc. DOES NOT WARRANT THAT THE SERVICE WILL BE UNINTERRUPTED, ERROR-FREE, SECURE, OR FREE OF VIRUSES OR OTHER HARMFUL COMPONENTS. YOUR USE OF THE SERVICE IS AT YOUR SOLE RISK. SOME JURISDICTIONS DO NOT ALLOW THE EXCLUSION OF CERTAIN WARRANTIES, SO SOME OF THE ABOVE EXCLUSIONS MAY NOT APPLY TO YOU.

10. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW:

- IN NO EVENT SHALL Acme SaaS Inc., ITS AFFILIATES, OFFICERS, DIRECTORS, EMPLOYEES, AGENTS, OR LICENSORS BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING WITHOUT LIMITATION LOSS OF PROFITS, DATA, USE, GOODWILL, OR OTHER INTANGIBLE LOSSES, RESULTING FROM YOUR ACCESS TO OR USE OF (OR INABILITY TO ACCESS OR USE) THE SERVICE
- Acme SaaS Inc.'S AGGREGATE LIABILITY FOR ALL CLAIMS RELATING TO THE SERVICE SHALL NOT EXCEED THE GREATER OF (A) THE AMOUNTS YOU PAID TO Acme SaaS Inc. IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM, OR (B) ONE HUNDRED DOLLARS (\$100.00 USD)
- THE LIMITATIONS IN THIS SECTION APPLY REGARDLESS OF THE LEGAL THEORY ON WHICH THE CLAIM IS BASED, INCLUDING WITHOUT LIMITATION CONTRACT, TORT (INCLUDING NEGLIGENCE), STRICT LIABILITY, OR ANY OTHER BASIS, EVEN IF Acme SaaS Inc. HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES
- SOME JURISDICTIONS DO NOT ALLOW THE LIMITATION OR EXCLUSION OF LIABILITY FOR INCIDENTAL OR

CONSEQUENTIAL DAMAGES, SO THE ABOVE LIMITATIONS MAY NOT APPLY TO YOU. IN SUCH JURISDICTIONS, Acme SaaS Inc.'S LIABILITY SHALL BE LIMITED TO THE FULLEST EXTENT PERMITTED BY LAW

11. Indemnification

You agree to indemnify, defend, and hold harmless Acme SaaS Inc., its officers, directors, employees, and agents from and against any claims, liabilities, damages, losses, and expenses (including reasonable legal fees) arising out of or related to: (a) your use of the Service; (b) your violation of these Terms; (c) your violation of any rights of a third party; or (d) any content you submit or transmit through the Service.

12. Dispute Resolution and Arbitration

Any dispute, controversy, or claim arising out of or relating to these Terms, or the breach, termination, or invalidity thereof, shall first be submitted to good-faith negotiation between the parties. If the dispute is not resolved within thirty (30) days of written notice, it shall be finally resolved by binding arbitration administered by the American Arbitration Association ("AAA") under its Commercial Arbitration Rules, or alternatively by JAMS under its Comprehensive Arbitration Rules and Procedures, at the election of the claimant. The arbitration shall be conducted in [Your Jurisdiction] by a single arbitrator. The arbitrator's decision shall be final and binding, and judgment on the award may be entered in any court having jurisdiction thereof. Each party shall bear its own costs and attorney's fees unless the arbitrator determines otherwise.

Notwithstanding the foregoing, either party may bring an individual action in small claims court for disputes within the jurisdictional limits of such court.

****CLASS ACTION WAIVER:**** YOU AND Acme SaaS Inc. AGREE THAT EACH PARTY MAY BRING CLAIMS AGAINST THE OTHER ONLY IN YOUR OR ITS INDIVIDUAL CAPACITY, AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS, CONSOLIDATED, OR REPRESENTATIVE PROCEEDING. UNLESS BOTH PARTIES AGREE OTHERWISE IN WRITING, THE ARBITRATOR MAY NOT CONSOLIDATE MORE THAN ONE PERSON'S CLAIMS AND MAY NOT OTHERWISE PRESIDE OVER ANY FORM OF A CLASS, CONSOLIDATED, OR REPRESENTATIVE PROCEEDING. IF THIS SPECIFIC PROVISION IS FOUND TO BE UNENFORCEABLE, THEN THE ENTIRETY OF THIS ARBITRATION SECTION SHALL BE NULL AND VOID. THIS CLASS ACTION WAIVER IS AN ESSENTIAL PART OF THIS ARBITRATION AGREEMENT AND MAY NOT BE SEVERED FROM IT.

13. Termination

- You may stop using the Service at any time
- We may suspend or terminate your access for violation of these Terms
- Upon termination, your right to use the Service ceases immediately
- Provisions that by their nature should survive termination will survive

14. Changes to Terms

We reserve the right to modify these Terms at any time. We will provide notice of material changes by posting the updated Terms on the Service and updating the "Last Modified" date at the top of this document. For material changes that adversely affect your rights, we will provide at least thirty (30) days' advance notice via

email or a prominent notice within the Service. Your continued use of the Service after the effective date of the revised Terms constitutes your binding acceptance of such changes.

15. Service Level and Availability

We employ commercially reasonable efforts to maintain the availability and performance of the Service, including the use of monitoring and error-tracking systems. However, unless a separate Service Level Agreement ("SLA") has been executed between you and Acme SaaS Inc., we do not guarantee any specific level of uptime, availability, or response time.

If Acme SaaS Inc. offers a separate SLA for your subscription tier, the terms of that SLA shall govern service availability commitments and any associated remedies, including service credits. In the event of a conflict between this section and a separately executed SLA, the SLA shall prevail.

16. Force Majeure

Neither party shall be liable for any failure or delay in performing its obligations under these Terms where such failure or delay results from circumstances beyond its reasonable control, including but not limited to acts of God, natural disasters, war, terrorism, riots, embargoes, acts of government, epidemics, pandemics, power or telecommunications failures, or internet disruptions.

17. Governing Law

These Terms are governed by the laws of [Your Jurisdiction]. Any disputes not subject to arbitration will be resolved in the courts of [Your Jurisdiction].

18. General Provisions

****Severability:**** If any provision of these Terms is found to be unenforceable or invalid by a court of competent jurisdiction, the remaining provisions will continue in full force and effect.

****Entire Agreement:**** These Terms, together with our Privacy Policy and any other policies referenced herein, constitute the entire agreement between you and Acme SaaS Inc. regarding the Service, and supersede all prior agreements and understandings.

****Assignment:**** You may not assign or transfer your rights or obligations under these Terms without our prior written consent. We may assign our rights and obligations without restriction.

19. Contact

If you have questions about these Terms, please contact us at:

– ****Email:**** privacy@acme.com

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